

Court No. - 21

Case :- WRIT - C No. - 2879 of 2019

Petitioner :- Ramesh Chandra (Deceased)

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- A.L.Gupta

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

As prayed, list on 05.2.2019 in the additional
cause list.

Order Date :- 25.1.2019

Puspendra

Court No. - 21

Case :- WRIT - C No. - 2879 of 2019

Petitioner :- Ramesh Chandra (Deceased)

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- A.L.Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Put up on 13th February, 2019, in the additional cause list.

Order Date :- 5.2.2019

SR

Court No. - 21

Case :- WRIT - C No. - 2879 of 2019

Petitioner :- Ramesh Chandra (Deceased)

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- A.L.Gupta

Counsel for Respondent :- C.S.C.,Baleshwar
Chaturvedi

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Put up on 5.3.2019 in the additional cause list.

Order Date :- 13.2.2019

Puspendra

Court No. - 21

Case :- WRIT - C No. - 2879 of 2019

Petitioner :- Ramesh Chandra (Deceased)

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- A.L.Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Usha Kiran

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Order on Amendment Application No.3 of 2019

The amendment application filed today is taken on record.

The amendment application is allowed.

Learned counsel for the petitioner may carry out the necessary amendment be made in the present petition during the course of the day.

Put up this case day after tomorrow i.e. 07.03.2019 in the additional cause list.

Order Date :- 5.3.2019

M. ARIF

Court No. - 21

Case :- WRIT - C No. - 2879 of 2019

Petitioner :- Ramesh Chandra (Deceased)

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- A.L.Gupta

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi,Usha Kiran

Hon'ble Pradeep Kumar Singh Baghel,J.

Hon'ble Pankaj Bhatia,J.

Heard learned counsel for the petitioner and Standing Counsel for the State.

The petitioner has filed the present petition alleging that the petitioner is having an electricity connection and on 26.2.2017 his electricity was disconnected as the Department was of the view that an amount of Rs.70537/- was pending against the petitioner. It is further stated that on 21.3.2017 the petitioner was issued a bill showing outstanding amount of Rs.2,62,668/-. The petitioner being aggrieved against the incorrect billing moved an application before the respondents. However, the correct bill has not been issued till dated.

The counsel for the respondents has drawn our attention to Section 6.5 of the Electricity Supply Code, 2005 which deals with the disputes pertaining to accuracy of any bills and provides for filing of a complaint with the competent authority who in turn is under mandate to decide the same within seven days.

Considering the provision of the Electricity Supply Code, 2005, we permit the petitioner to file a complaint in terms of Section 6.5 (b) of the Electricity Supply Code, 2005 within a period of three weeks from today and in the event the same is filed before the respondent no.2, the same shall be decided expeditiously, preferably within a period of one month from the date of filing of the application.

With these observations, the writ petition is disposed off without entering into the merits of the averments made in the writ petition.

Order Date :- 7.3.2019

Hasnain